

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Marie Seguy	Team: Squad #07	CCRB Case #: 202302289	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 03/10/2023 9:45 AM, Friday, 03/10/2023 10:15 AM	Location of Incident: Newkirk Avenue - Little Haiti Subway Station; 70th PCT stationhouse.	18 Mo. SOL 9/10/2024	Precinct: 70
Date/Time CV Reported Fri, 03/17/2023 5:40 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 03/17/2023 5:40 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Melissa Stines	07612	934059	070 PCT
2. PO Jonathan Gomez	22992	972392	070 PCT
3. PO Paulina Gutierrez	04251	972678	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Melissa Stines	Force: At Newkirk Avenue - Little Haiti Subway Station, Police Officer Melissa Stines used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Jonathan Gomez	Force: At Newkirk Avenue - Little Haiti Subway Station, Police Officer Jonathan Gomez used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Paulina Gutierrez	Force: At the 70th Precinct stationhouse, Police Officer Paulina Gutierrez used physical force against § 87(2)(b)	C . Within NYPD Guidelines
§ 87(4-b) § 87(2)(g)		

Case Summary

On March 17, 2023, § 87(2)(b) filed this complaint via the online system (**BR 01**).

On March 10, 2023, at approximately 09:20 a.m., § 87(2)(b) a § 87(2)(b) teenager, entered the Brooklyn College subway station in Brooklyn to take the train to school without paying her fare. PO Jonathan Gomez and PO Melissa Stines, from the 70th PCT, pushed § 87(2)(b) who had entered a subway car. In that car, PO Gomez and PO Stines used force against § 87(2)(b) while trying to detain her (**Allegations A and B: Force –Physical Force, Within NYPD Guidelines**). Later in the morning, at approximately 10:15 a.m., PO Paulina Gutierrez, from the 70th PCT, pushed her down on a chair in the 70th PCT stationhouse (**Allegation C: Force – Physical Force, Within NYPD Guidelines**). § 87(4-b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

The investigation obtained body-worn camera (BWC) videos from the following members of the service: PO Gomez (**BR 02**), PO Melissa Stines (**BR 03**), PO Gutierrez (**BR 04**), PO Elvin Vargas (**BR 05**), PO Kerwin Adames (**BR 06**), and Sgt. Earl Rochester (**BR 07**), all from the 70th PCT.

The investigation also obtained TARU footage from cameras located at the corner of Newkirk Avenue and Nostrand Avenue in front of the entrance/exit of the Newkirk Avenue – Little Haiti subway station in Brooklyn (**BR 08**).

Findings and Recommendations

On May 2, 2023, § 87(2)(b) was interviewed over the phone by the CCRB (**BR 09**).

Allegation (A) Force: At Newkirk Avenue - Little Haiti Subway Station, Police Officer Jonathan Gomez used physical force against § 87(2)(b)

Allegation (B) Force: At Newkirk Avenue - Little Haiti Subway Station, Police Officer Melissa Stines used physical force against § 87(2)(b)

Allegation (C) Force: At the 70th Precinct stationhouse, Police Officer Paulina Gutierrez used physical force against § 87(2)(b)

In her official statement, § 87(2)(b) explained that on March 10, 2023, at approximately 9:20 a.m., she entered the Brooklyn College subway station to take the train for school. She was late and saw her train arriving on the platform, but she had not yet received her MetroCard from her new high school. § 87(2)(b) asked PO Gomez if she could jump the turnstile to catch her train and the officer responded, “Don’t worry, I got you.” § 87(2)(b) considered this as a yes and passed under the turnstile then jumped in her train. While getting inside the train, she heard PO Gomez saying, “Not in front of me.” After sitting down on the train, PO Stines and PO Gomez entered the train and asked her to step outside, but § 87(2)(b) refused because she was late for school. The train then exited the station. § 87(2)(b) continuously argued with the officers about her passing the turnstile and needing to go to school. § 87(2)(b) used the “F” word multiple times. When the train reached the next station, Newkirk Avenue, PO Gomez grabbed her arm and pulled her away from her seat, which hurt her shoulder. § 87(2)(b) sprained her left shoulder from this and told the officers that it was hurting. § 87(2)(b) did not recall if the officers asked her to step outside the train at this point.

§ 87(2)(b) was transported to the 70th PCT stationhouse and processed for arrest. PO Gutierrez took her to the holding cell area and asked her to sit down on a bench. § 87(2)(b) refused to sit down so PO Gutierrez pushed her onto the chair. As a result, she fell and sat on the bench.

On PO Gomez' BWC, both PO Gomez and PO Stines are standing by § 87(2)(b) who is sitting on a bench of the train from the 00m00s mark. From the 00m59s mark to the 05m28s mark, § 87(2)(b) complains about the officers bugging her for jumping the turnstile when she is just late for school. During this time, the officers ask her to get off the train over ten times. § 87(2)(b) continuously criticizes the officers and states that she won't get off the train because she needs to go to school. PO Gomez § 87(2)(g) calmly talking to § 87(2)(b). At the 03m40s mark, when the train is at the Newkirk Avenue subway station, PO Gomez exits the train and asks the driver to hold the train before asking § 87(2)(b) to step off twice.

At the 05m28s mark, § 87(2)(b) reiterates that she won't leave the train. PO Stines commands her to get off the train multiple times. At the 05m50s mark, PO Gomez calmly tells § 87(2)(b) that they just need to speak to her legal guardian outside the train, but § 87(2)(b) responds, "Bro, I don't give a fuck." At the 06m21s mark, PO Stines grabs § 87(2)(b)'s left arm while PO Gomez asks her to get off the train. Then, at the 06m30s mark, PO Gomez also grabs § 87(2)(b)'s right arm before both officers start pulling her out of the train. § 87(2)(b) repeats, "Get the fuck off of me." At the 06m44s mark, PO Gomez tries to handcuff § 87(2)(b) while PO Stines holds her (BR 02).

In PO Stines' BWC footage, PO Stines' BWC falls from her uniform at the 07m16s mark, but at the 07m50s mark, it captures, from the floor, PO Stines pulling § 87(2)(b) toward the train door despite § 87(2)(b) holding on to a subway pole. From the 08m00s mark to the 09m20s mark, § 87(2)(b) tries to pull away from the officers and resist being taken out of the train. From the 09m25s mark to the 28m00s mark, the officers walk and transport § 87(2)(b) to the 70th PCT stationhouse to process her arrest while she complains about the situation and curses at the officers (BR 03).

In PO Gutierrez's BWC footage, at the 25m00s mark, PO Gutierrez takes over from PO Stines to search § 87(2)(b) in front of the desk at the stationhouse because § 87(2)(b) refuses to have PO Stines frisk and search her. PO Stines then walks § 87(2)(b) to a holding cell area. At the 32m45s mark, PO Gutierrez tells § 87(2)(b) to sit down on the bench, but she refuses, so PO Gutierrez unsuccessfully tries to pressure § 87(2)(b)'s shoulder to make her sit down. § 87(2)(b) resists sitting down and tries to move away from the chair despite PO Gutierrez's multiple requests for her to sit down. At the 33m05s mark, another female officer in plainclothes tries to convince § 87(2)(b) to calm down and sit down, but § 87(2)(b) continues to argue while sitting down. At the 33m25s mark, § 87(2)(b) is taken to the juvenile cell area while she is yelling profanities (BR 03).

Patrol Guide Procedure 221-01 states that members of the service can resort to the use of force depending on the "action taken by the subject; the duration of the action; the immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody [...]; the number of subject in comparison to the number of MOS [...]; and subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence" (BR 10).

§ 87(2)(g)

It is therefore recommended that Allegations A, B, and C be closed as **Within NYPD Guidelines**.

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 14**).
- PO Jonathan Gomez has been a member-of-service for one year and has been named as a subject to one other CCRB complaint and one allegation of abuse of authority for entry of premises, which is still under investigation (**BR 15**).
- PO Melissa Stines has been a member-of-service for 19 years and this is the first CCRB complaint to which he has been a subject (**BR 16**).
- PO Paulina Gutierrez has been a member-of-service for one year and has been named as a subject in one other CCRB complaint and one allegation of physical force, which is still under investigation (**BR 17**).

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 31st, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 18**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad: 7

Investigator:	<u>Marie Seguy</u>	<u>Investigator Marie Seguy</u>	<u>May 31, 2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Manager Vanessa Rosen</u>	<u>May 31, 2023</u>
	Signature	Date

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